

25STCV33912 25STCV33912

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Case Number: 25STCV33912 Hearing Date: August 20, 2026 Dept: 400

MOTION TO COMPEL

The Court tenders the following tentative decision in the matter Jesus Flores v. Eugene la Pietra, Los Angeles County Superior Court case number 25STCV33912, set for hearing on August 20, 2026. Jesus Flores (Plaintiff) moves for an order compelling further responses to his special interrogatories, set one (SPROGs) from Eugene la Pietra (Defendant). Defendant opposes the motion on the grounds that it is untimely.

A party may move for an order compelling further responses to interrogatories if the propounding party deems that responses are incomplete, evasive, or contain meritless objections. (Code Civ. Proc., § 2030.300, subd. (a).) A party waives its right to compel further responses to interrogatories unless “notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing.” (Id., § 2030.300, subd. (c).)

Here, Plaintiff propounded his SPROGs on January 6, 2026. (Fox Decl. ¶ 3.) Defendant served verified responses on February 10. (Id. ¶ 4.) Under section 2030.300, Plaintiff had 45 days, or until March 27, to file the present motion. Plaintiff did not file the motion until June 24, 2026. Plaintiff does not provide any evidence of an agreement in writing between the parties that the motion to compel deadline would be extended. Thus, the motion is untimely under section 2030.300, subdivision (c).

Plaintiff requests that the Court disregard this delay for several reasons. First, Plaintiff argues that he was engaged in settlement discussions. This did not prevent the timely filing of the present motion. Second, Plaintiff points to an attempt at informal resolution. This too is irrelevant. Third, Plaintiff notes that Defendant raised the possibility of relating this case to another proceeding before later admitting that the cases were not related. Even if the case had been deemed related, the same deadline would have existed. Thus, none of these reasons excuse the heavily delayed filing. Accordingly, Plaintiff's motion is denied.